IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Qazi Faez Isa, CJ
* Hon'ble Mr. Justice Amin-ud-Din Khan
* Hon'ble Mr. Justice Athar Minallah

Crl. Appeal No. 323/2023
Citation: PLD 2023 Lah 350
Matter ID: MAT-CRIM-2023-016

BETWEEN:
Ghulam Mustafa ... Appellant / Petitioner
VERSUS
The State through Advocate General Punjab ... Respondent

LEGAL TOPIC: Criminal - Murder & Fair Trial
STATUTES CITED: Pakistan Penal Code 1860, S. 302, CrPC 1898, S. 154, S. 161, Constitution Art 10A

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 323/2023, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Pakistan Penal Code 1860, S. 302 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate any illegality or procedural irregularity in terms of Pakistan Penal Code 1860, S. 302. Appeal stands dismissed with no order as to costs.

Decided on: 14 October 2023.